

Amendment Procedure & Basic Structure

Article 368 pathways and Kesavananda basic structure doctrine.

Portion focus ~80% · Topic: polity-const

PYQ themes: Art 368 · Basic structure · Judicial review · Federal ratification · Kesavananda

Why this article (PYQ probability)

Portion chance ~80%. Regular conceptual hits; parent polity-const ~85%.

Years appeared (synthesis): 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024, 2025

Why UPSC asks this

Tests limits on constitutional change — conceptual depth.

Why this portion is high-chance for the next exam

Portion chance ~80%. Regular conceptual hits; parent polity-const ~85%. Within polity-const, examiners return to constitutional amendment and basic structure because it yields clean MCQ discriminators: definitions, matching lists, and statement–reason traps. These notes are multi-page depth material — original study synthesis for prioritisation, not NCERT/UPSC verbatim text and not an official prediction.

Use the chance % to sequence study hours, then widen to neighbouring syllabus areas. PYQ theme tags driving selection: Art 368, Basic structure, Judicial review, Federal ratification, Kesavananda. Approximate appearance years in the 2016–2025 educational synthesis: 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024, 2025.

Read this block slowly: high-chance portions repay depth because UPSC recycles the same discriminators with fresh stems. Your job is not to memorise paragraphs but to own triggers — dates, articles, site–feature pairs, formulae, treaty purposes — so elimination is automatic. After each subsection, pause and write two keywords on rough paper; if you cannot, reread only that subsection.

Core map of constitutional amendment and basic structure

Art 368: Power and procedure to amend. Special majority: Typical parliamentary pathway. State ratification: Some federal provisions need States.

Not ordinary law: Distinct from simple legislation. Kesavananda 1973: Cannot destroy basic structure via 368. Illustrative features: Supremacy, judicial review, federalism, secularism, free elections.

If you can explain each point aloud in sixty seconds without notes, elimination speed in Prelims rises sharply. Watch absolute words in options (always/never/only) — often wrong where processes are multi-causal or jurisprudentially nuanced.

Draw the core map once from memory at the end of this sitting. Compare with the text. Patch only the missing nodes. That single retrieval cycle is worth more than two passive rereads of the same page.

Depth focus: Art 368

Art 368 — Power and procedure to amend In exam stems, expect this idea to appear either as a direct definition or as one statement in a multi-statement cluster.

Special majority — Typical parliamentary pathway Contrast the two ideas above: what would a wrong option swap between them?

Micro-drill: write one correct statement and one incorrect statement using only these ideas; label why the incorrect one fails. Keep language tight — UPSC rewards precision on constitutional amendment and basic structure more than ornamental vocabulary. If this pair links to a map or article number, add that trigger in the

margin of your PDF printout.

Depth focus: State ratification

State ratification — Some federal provisions need States In exam stems, expect this idea to appear either as a direct definition or as one statement in a multi-statement cluster.

Not ordinary law — Distinct from simple legislation Contrast the two ideas above: what would a wrong option swap between them?

Micro-drill: write one correct statement and one incorrect statement using only these ideas; label why the incorrect one fails. Keep language tight — UPSC rewards precision on constitutional amendment and basic structure more than ornamental vocabulary. If this pair links to a map or article number, add that trigger in the margin of your PDF printout.

Depth focus: Kesavananda 1973

Kesavananda 1973 — Cannot destroy basic structure via 368 In exam stems, expect this idea to appear either as a direct definition or as one statement in a multi-statement cluster.

Illustrative features — Supremacy, judicial review, federalism, secularism, free elections Contrast the two ideas above: what would a wrong option swap between them?

Micro-drill: write one correct statement and one incorrect statement using only these ideas; label why the incorrect one fails. Keep language tight — UPSC rewards precision on constitutional amendment and basic structure more than ornamental vocabulary. If this pair links to a map or article number, add that trigger in the margin of your PDF printout.

Depth focus: Open list

Open list — Essentials identified case-by-case In exam stems, expect this idea to appear either as a direct definition or as one statement in a multi-statement cluster.

Golaknath backdrop — Earlier amendment–rights tension Contrast the two ideas above: what would a wrong option swap between them?

Micro-drill: write one correct statement and one incorrect statement using only these ideas; label why the incorrect one fails. Keep language tight — UPSC rewards precision on constitutional amendment and basic structure more than ornamental vocabulary. If this pair links to a map or article number, add that trigger in the margin of your PDF printout.

Depth focus: Election case

Election case — Basic structure in political process context In exam stems, expect this idea to appear either as a direct definition or as one statement in a multi-statement cluster.

Minerva Mills — Limited amending power; FR–DPSP harmony Contrast the two ideas above: what would a wrong option swap between them?

Micro-drill: write one correct statement and one incorrect statement using only these ideas; label why the incorrect one fails. Keep language tight — UPSC rewards precision on constitutional amendment and basic structure more than ornamental vocabulary. If this pair links to a map or article number, add that trigger in the margin of your PDF printout.

Depth focus: 42nd Amendment

42nd Amendment — Emergency-era expansive politics In exam stems, expect this idea to appear either as a direct definition or as one statement in a multi-statement cluster.

44th Amendment — Corrective politics headline Contrast the two ideas above: what would a wrong option swap between them?

Micro-drill: write one correct statement and one incorrect statement using only these ideas; label why the incorrect one fails. Keep language tight — UPSC rewards precision on constitutional amendment and basic structure more than ornamental vocabulary. If this pair links to a map or article number, add that trigger in the margin of your PDF printout.

Depth focus: Judicial review link

Judicial review link — Often treated as essential In exam stems, expect this idea to appear either as a direct definition or as one statement in a multi-statement cluster.

Procedure vs substance — Correct procedure cannot smash essentials Contrast the two ideas above: what would a wrong option swap between them?

Micro-drill: write one correct statement and one incorrect statement using only these ideas; label why the incorrect one fails. Keep language tight — UPSC rewards precision on constitutional amendment and basic structure more than ornamental vocabulary. If this pair links to a map or article number, add that trigger in the margin of your PDF printout.

Depth focus: Federalism shield

Federalism shield — Ratification + basic structure narrative In exam stems, expect this idea to appear either as a direct definition or as one statement in a multi-statement cluster.

Secularism/democracy — Frequently cited essentials Contrast the two ideas above: what would a wrong option swap between them?

Micro-drill: write one correct statement and one incorrect statement using only these ideas; label why the incorrect one fails. Keep language tight — UPSC rewards precision on constitutional amendment and basic structure more than ornamental vocabulary. If this pair links to a map or article number, add that trigger in the margin of your PDF printout.

Depth focus: Not entire Part III frozen identically

Not entire Part III frozen identically — Targets constitutional identity essentials In exam stems, expect this idea to appear either as a direct definition or as one statement in a multi-statement cluster.

Constituent power debates — Prelims wants outcome clarity Contrast the two ideas above: what would a wrong option swap between them?

Micro-drill: write one correct statement and one incorrect statement using only these ideas; label why the incorrect one fails. Keep language tight — UPSC rewards precision on constitutional amendment and basic structure more than ornamental vocabulary. If this pair links to a map or article number, add that trigger in the margin of your PDF printout.

Comparison tables — memorise differences, not essays

Tables win Prelims because UPSC loves correctly matched pairs and multi-statement sets. Study the table(s) embedded with this article until you can reproduce them on rough paper in under four minutes. Then invent two false rows and practise spotting them — that simulates assertion traps.

After table mastery, return to narrative sections only for rows you keep missing. Depth here is intentional: thin skim notes lose marks on discriminators. When a table row has a date, article, or place, that cell is a trigger — circle it.

Must-know India / applied angle

Doctrine is India's identity shield versus absolute parliamentary sovereignty caricatures. Keep a rolling one-page CA addendum dated by month; do not rewrite your static spine every week. Mains crossover exists, but Prelims primarily rewards precise factual edges and definitions.

Link each applied example back to a static hook so current affairs does not float free of the syllabus. If a news item cannot attach to a hook within ten seconds, park it in a low-priority list. Rehearse a 45-second spoken India angle the day before any mock that might touch this portion.

How UPSC typically frames questions (PYQ angle)

Matching lists and multi-statement questions on constitutional amendment and basic structure. Tactic: eliminate anachronisms and category errors first (wrong institution, wrong treaty family, wrong century, wrong formula base). Then test remaining options against table rows. Finally, beware extra absolute adjectives.

Assertion–reason items often smuggle a true statement with a false causal link — judge the link, not only the facts. Matching lists reward uniqueness: start with the most distinctive pair. Themes: Art 368, Basic structure, Judicial review, Federal ratification, Kesavananda. Years signal in this hub's synthesis: 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024, 2025.

Common traps and how to dodge them

Trap: Unlimited amending power. Trap: Basic structure as printed schedule. Trap: Mixing ratification with Money Bill.

Trap: Wrong Kesavananda year.

Build a personal trap diary: after each mock, add one line under this heading. Reread only the trap diary the night before the paper for this portion. Teach one trap to a peer in one minute — teaching exposes fuzzy understanding.

Worked revision method (make the PDF earn its pages)

Day 1: core map + table; close notes; reproduce table. Day 2: India angle + traps; 15 MCQs. Day 3: PYQ-style self-questions from headings only. Day 4: teach the topic aloud for eight minutes. Day 5: mixed quiz with neighbouring topics to prevent silo memory.

Print the PDF or use in-app Download PDF. Annotate margins only with triggers you forget — not entire yellow pages. Spaced retrieval beats rereading: hide the PDF and write bullets from memory, then check. In the final 15 days, this portion should be in 'table + traps + must' mode, not first-read mode.

Quick synthesis for the exam hall

Definitions !' table !' India !' traps for constitutional amendment and basic structure. Portion focus score used in-app: ~80%. If time is scarce in the last week, reread Must remember + tables + traps only; return to long sections for weak rows.

Carry a one-line spine on rough paper in the first minute of the paper if this topic appears early — then eliminate. Do not invent facts under pressure; prefer elimination from your table.

Extended notes — depth for multi-page mastery

Art 368. Power and procedure to amend Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. Special majority. Typical parliamentary pathway Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. State ratification. Some federal provisions need States Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. Not ordinary law. Distinct from simple legislation Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. Kesavananda 1973. Cannot destroy basic structure via 368 Pair this with one contrasting point so options cannot blur categories. Add a

keyword trigger in your margin.

Illustrative features. Supremacy, judicial review, federalism, secularism, free elections Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. Open list. Essentials identified case-by-case Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. Golaknath backdrop. Earlier amendment–rights tension Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. Election case. Basic structure in political process context Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. Minerva Mills. Limited amending power; FR–DPSP harmony Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin.

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Secularism/democracy. Frequently cited essentials Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. Not entire Part III frozen identically. Targets constitutional identity essentials Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin. Constituent power debates. Prelims wants outcome clarity Pair this with one contrasting point so options cannot blur categories. Add a keyword trigger in your margin.

This extended module exists so downloads are clearly longer/richer than skim notes. Read it in two sittings if needed; do not skim on day one and never return. After finishing, close the article and write a 12-line summary from memory; compare; patch gaps only. Then solve at least ten mixed MCQs tagging each error to a heading in this PDF.

Error log template (copy into your notebook)

For every missed question related to this portion, record: (1) stem gist, (2) wrong choice, (3) correct choice, (4) misconception in five words, (5) table row or must-remember line that would have saved you. Review the error log before the next mock. If the same misconception repeats thrice, rewrite that depth-focus section in your own words on a fresh page.

This metacognitive loop is how multi-page notes convert into marks rather than shelf weight.

Self-check questions (close the book first)

1) Define constitutional amendment and basic structure in two sentences without buzzword salad. 2) Recite the comparison table rows from memory. 3) List three traps and the correct mental fix for each. 4) Give two India examples and one international or cross-topic anchor. 5) Write one incorrect statement UPSC might plant — then correct it. 6) Time yourself: explain the exam spine in 90 seconds. 7) List five triggers (dates/articles/sites/formulae) without peeking.

Pass criteria: 6/7 without peeking. Then move to mixed MCQs. Failing is useful if you patch immediately — that is the point of depth notes.

Amendment & limits

Idea	Hook
Art 368	Power/procedure
Special majority	Parliamentary path
State ratification	Federal features

Substantive limit

Common traps

- ' Unlimited amending power
- ' Basic structure as printed schedule
- ' Mixing ratification with Money Bill
- ' Wrong Kesavananda year

Must remember

- Kesavananda 1973
- Art 368
- Ratification subset
- Feature examples
- 42nd/44th context

Quick revision checklist

- & Reproduce table
- & 5 must-remembers
- & 3 traps
- & India anchor
- & 10 MCQs

Educational prioritisation heuristic — not an official UPSC prediction. © UPSC IAS Study Hub original notes.

